

## 25NNCV09364 25NNCV09364

County: los-angeles

Division: Civil Law and Motion

Department: B

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Case Number: 25NNCV09364 Hearing Date: July 17, 2026 Dept: B

Hon. Victor Avila, Dept B

Motion for Monetary Sanctions

Hearing Date: 07/17/26

CASE NO./NAME: 25NNCV09364/ The Estate of Cosmo

Silverman, et. al v. Campbell Hall, et. al.

Moving Party: Plaintiffs

The Estate of Cosmo Silverman, Adam Silverman, and Louise Bonnet

Responding Party: Defendant Campbell Hall

Notice: Sufficient

Ruling: GRANT

NOTICE

The

Court is not requesting oral argument on this matter. The Court is guided by California Rules of Court, Rule 3.1308(a)(1) whereby notice of intent to appear is requested. Unless the Court directs argument in the Tentative Ruling, no argument is requested and any party seeking argument should notify all other parties and the court by 4:00 p.m. on the court day before the hearing of the party's intention to appear and argue. The tentative ruling will become the ruling of the court if no argument is received.

Notice

may be given either by email at [email protected] or by telephone at (818) 260-8422.

## BACKGROUND

This is a wrongful death and premises liability case. On June 4, 2025, fifteen-year-old Campbell Hall student Cosmo Silverman ("Cosmo") was run over and killed in the school's parking lot. (Compl., ¶ 1.) On December 30, 2025, Plaintiffs Adam Silverman, Louise Bonnet, and The Estate of Cosmo Silverman, by and through its Successors-in-Interest Adam Silverman and Louise Bonnet (collectively, "Plaintiffs"), filed a Complaint alleging (1) wrongful death-negligence and (2) premises liability against Defendant Campbell Hall ("Defendant") and Does 1 through 10. Plaintiffs allege that had the school acted on prior complaints about the dangerous design and operation of its Triangle Parking Lot, Cosmo would still be alive. (Ibid.) Campbell Hall made safety improvements to its parking lot after Cosmo's death. (Ibid.)

On February 9, 2026, Plaintiffs filed this Motion for Monetary Sanctions in the amount of \$732.70 for Defendant's failure to return notice and acknowledgement of receipt of summons and complaint.

On July 10, 2026, Defendant filed an opposition.

On July 10, 2026, Plaintiffs filed a reply.

## LEGAL

### STANDARD

A summons may be served by mail as provided in this section. A copy of the summons and of the complaint shall be mailed (by first-class mail or airmail, postage prepaid) to the person to be served, together with two copies of the notice and acknowledgment provided for in subdivision (b) and a return envelope, postage prepaid, addressed to the sender. (Civ. Proc. Code, § 415.30, subd. (a).) If the person to whom a copy of the summons and of the complaint are mailed pursuant to this section fails to

complete and return the acknowledgment form set forth in subdivision (b) within 20 days from the date of such mailing, the party to whom the summons was mailed shall be liable for reasonable expenses thereafter incurred in serving or attempting to serve the party by another method permitted by this chapter, and, except for good cause shown, the court in which the action is pending, upon motion, with or without notice, shall award the party such expenses whether or not he is otherwise entitled to recover his costs in the action. (Id. at Civ. Proc. Code, § 415.30, subd. (d); Thierfeldt v. Marin Hosp. Dist. (1973) 35 Cal.App.3d 186, 199 [“Code of Civil Procedure section 415.30, effective July 1, 1970, which authorizes service of summons by mail, expressly predicates the efficacy of such service upon the execution and return of an acknowledgment of service. If the party addressed fails to do so, there is no effective service, he merely becomes liable for the reasonable expenses of service in a more conventional manner.”]) A notice or acknowledgment of receipt in form approved by the Judicial Council is deemed to comply with this section. (Civ. Proc. Code, § 415.30, subd. (e).)

## DISCUSSION

### Plaintiffs

argue they are entitled to recover the costs associated with serving Defendant and request an order sanctioning Defendant for reasonable expenses incurred in effecting that personal service. Plaintiffs argue that insurance defense counsel missed the January 26, 2026, statutory deadline to return the executed acknowledgment of receipt without explanation or a request for an extension. Plaintiffs contend that on December 30, 2025, Patrick Stockalper (“Stockalper”), insurance defense attorney for Defendant, confirmed he had authority to accept service in this lawsuit and Plaintiffs filed the complaint that day. Then, Plaintiffs served Stockalper with a Notice and Acknowledgement of Receipt. Plaintiffs argue that the executed acknowledgement was due back to Plaintiff’s counsel on January 26, 2026. Stockalper did not return the executed Acknowledgement, nor request an extension. Plaintiffs informed Stockalper that they intended to serve the summons and complaint by personal service and by U.S. Mail on Defendant and its registered agent. Plaintiffs contend service was completed on January 28, 2026, at a cost of \$732.70.

### In

opposition, Defendant argues that Plaintiffs cannot establish the required causal connection. Defendant contends that section 415.30(d) permits recovery

of expenses only “thereafter incurred” because of the failure to return the acknowledgment form, and argues that there should be a direct casual link between the statutory noncompliance and the claimed costs. Defendant argues that Plaintiffs’ decision to personally serve Defendant was not “caused by” the failure to return the acknowledgment form because Plaintiff’s own evidence establishes that Defendant’s counsel had already confirmed acceptance of service. Defendant argues that the costs were not compelled by necessity but instead were voluntarily incurred after Plaintiffs elected to proceed with duplicative service efforts. Additionally, the Court retains discretion to deny the fees for good cause. Good cause exists here because (1) Defendant did not evade service or delay notice; (2) counsel expressly agreed to accept service; (3) Plaintiffs suffered no prejudice; and (4) the claimed expenses were not caused by any obstruction or refusal of service. Finally, Defendant argues that the amount sought is unreasonable in light of the circumstances.

In reply, Plaintiffs argue that Defendant’s representation that one will accept service is not the same as actually returning the statutory Notice and Acknowledgement. Plaintiffs also argue that Defendant has not shown good cause. Plaintiffs argue that whether Defendant evaded service is irrelevant. Counsel’s representation that he would accept service makes his failure inexcusable, not excusable. Because Defendant failed to return the Acknowledgment, Plaintiff incurred the expense of effecting service by another method. Finally, the amount requested is reasonable and undisputed as it reflects the documented cost of two substituted service efforts. Defendant does not identify an excessive charge, offer contrary evidence, or dispute that Plaintiffs paid the costs.

Here, Plaintiffs demonstrated that Stockalper confirmed authority to accept service and then served Stockalper on January 5, 2026. (Glassman Decl., ¶ 2, Ex. 2.) Accordingly, Acknowledgement was due within 20 days. Stockalper did not comply with the statute or request an extension. (Id. at ¶ 3, Ex. 3.) Plaintiffs then served Defendant by personal service and by U.S. Mail which cost \$478.00 and \$254.70, totaling \$732.70. (Id. at ¶ 3, Ex. 4, Ex. 5.) Because Defendant failed to comply with the statute, the Court finds that Plaintiff is entitled to the reasonable expenses thereafter incurred in serving the party by another method.

Moreover, the Court is not persuaded

by Defendant's argument that there is no direct causation or that good cause exists not to grant the motion. Defendant's proffered "good cause" does not demonstrate a good reason exists for Defendant's failure to perform the statutory requirement. Instead, the Court agrees that Defendant's failure to comply with the statute directly caused Plaintiffs to incur expenses of serving Defendant in a different method. That Stockalper agreed to accept service and did not evade service is not the same as complying with the statute.

Finally, the Court finds the amount requested to be reasonable. Plaintiffs have presented invoices that demonstrate that service cost a total of \$732.70. (Glassman Decl., ¶ 3, Ex. 4, Ex. 5.) Moreover, Defendants did not present any evidence that the amount was excessive or incorrect in opposition.

Accordingly, the motion is granted.

#### CONCLUSION AND ORDER

Plaintiffs' Motion for Monetary Sanctions in the amount of \$732.70 for Defendant's failure to return notice and acknowledgement of receipt of summons and complaint is granted.

MOVING PARTY is to give notice.